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COMMISSION IMPLEMENTING REGULATION (EU) 2026/586

of 17 March 2026

imposing a definitive anti-dumping duty and definitively collecting the provisional duty imposed on imports of phosphorous acid originating in the People's Republic of China

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) 2016/1036 of the European Parliament and of the Council of 8 June 2016 on protection against dumped imports from countries not members of the European Union ([1]) ('the basic Regulation'), and in particular Article 9(4) thereof,

Whereas:

1. PROCEDURE

1.1. Initiation

(1) On 19 March 2025, the European Commission ('the Commission') initiated an anti-dumping investigation with regard to imports of phosphorous acid originating in the People's Republic of China ('the country concerned' or 'the PRC') on the basis of Article 5 of the basic Regulation. It published a Notice of Initiation in the *Official Journal of the European Union* ([2]) ('the Notice of Initiation').

(2) The Commission initiated the investigation following a complaint lodged on 17 September 2024 by ICL Europe Coöperatief U.A. ('the complainant'). The complaint was made by the Union industry of phosphorous acid in the sense of Article 5(4) of the basic Regulation. The complaint contained evidence of dumping and of resulting material injury that was sufficient to justify the initiation of the investigation.

1.2. Registration

(3) The Commission made imports of the product concerned subject to registration by Commission Implementing Regulation (EU) 2025/1334 ([3]) ('the registration Regulation').

1.3. Provisional measures

(4) In accordance with Article 19a of the basic Regulation, on 21 October 2025, the Commission provided parties with a summary of the proposed duties and details about the calculation of the dumping margins and the margins adequate to remove the injury to the Union industry. Interested parties were invited to comment on the accuracy of the calculations within three working days.

(5) Although the invitation for comments was limited to the accuracy of the calculations ([4]), Linyi Chunming Chemical Co., Ltd. ('Linyi Chunming'), Yichang Chengkai Chemical Technology Co., Ltd ('YCCT'), and Zibo Tiandan Chemical Co., Ltd. ('Zibo Tiandan') submitted a number of comments on substance. These comments are addressed below in section 1.5 and 2.2.

([1]) OJ L 176, 30.6.2016, p. 21, ELI: http://data.europa.eu/eli/reg/2016/1036/oj.
([2]) OJ C, C/2025/1687, 19.3.2025, ELI: http://data.europa.eu/eli/C/2025/1687/oj.
([3]) Commission Implementing Regulation (EU) 2025/1334 of 10 July 2025 making imports of phosphorous acid originating in the People's Republic of China subject to registration (OJ L, 2025/1334, 11.7.2025, ELI: http://data.europa.eu/eli/reg_impl/2025/1334/oj).
([4]) The pre-disclosure document explicitly states that: 'Comments should be limited to the accuracy of calculations. At this stage, the Commission only takes comments regarding clerical errors into consideration. These include errors in addition, subtraction, or other arithmetic function, error resulting from inaccurate copying, duplication, application of inconsistent units of measurement or conversion rates and any other similar type of error which the Commission considers to be clerical. Any other comments will be considered only after the disclosure of provisional measures'.

(6) On 17 November 2025, the Commission imposed provisional anti-dumping duties on imports of phosphorous acid originating in the People's Republic of China by Commission Implementing Regulation (EU) 2025/2314 ([5]) ('the provisional Regulation').

1.4. **Subsequent procedure**

(7) Following the disclosure of the essential facts and considerations on the basis of which a provisional anti-dumping duty was imposed ('provisional disclosure'), one unrelated user and importer, Atanor Productos Químicos S.A., filed a written submission making its views known on the provisional findings within the deadline provided by Article 2(1) of the provisional Regulation. No other comments were submitted.

(8) The parties who so requested were granted an opportunity to be heard. A hearing took place with Atanor Productos Químicos S.A.

(9) The Commission continued to seek and verify all the information it deemed necessary for its final findings. When reaching its definitive findings, the Commission considered the comments submitted by interested parties and revised its provisional conclusions when appropriate.

(10) The Commission informed all interested parties of the essential facts and considerations on the basis of which it intended to impose a definitive anti-dumping duty on imports of phoshorous acid originating in the People's Republic of China ('final disclosure'). All parties were granted a period within which they could make comments on the final disclosure. Parties who so requested were also granted an opportunity to be heard.

(11) Following final disclosure, no interested party submitted comments or requested a hearing either with the Commission services or with the Hearing Officer

1.5. **Sampling**

(12) In the absence of comments on the sampling decisions concerning Union producers and unrelated importers, the conclusions in recitals (7) to (9) of the provisional Regulation were confirmed.

(13) In their joint comments on pre-disclosure, Linyi Chunming, YCCT, and Zibo Tiandan reiterated their arguments set out in recital (35) of the provisional Regulation. On that basis, the companies claimed that the Commission should determine an individual anti-dumping duty for Linyi Chunming and YCCT, and set the duty applicable to Zibo Tiandan at the level of the average of the two above companies.

(14) Considering that the Commission had already addressed the companies' claims, namely in recital (36) of the provisional Regulation, and the companies did not provide any new substantial arguments, the Commission confirmed its conclusions in recitals (10) to (36) of the provisional Regulation.

1.6. **Questionnaire replies and verification visits**

(15) In the absence of any comments, recitals (37) to (44) of the provisional Regulation were confirmed.

1.7. **Investigation period and period considered**

(16) It is recalled that the investigation period runs from 1 January 2024 to 31 December 2024 and the period considered from 1 January 2021 to the end of the investigation period. In the absence of any comments, recital (45) of the provisional Regulation was confirmed.

([5]) Commission Implementing Regulation (EU) 2025/2314 of 17 November 2025 imposing a provisional anti-dumping duty on imports of phosphorous acid originating in the People's Republic of China (OJ L, 2025/2314, 18.11.2025, ELI: http://data.europa.eu/eli/reg_impl/2025/2314/oj).

2. PRODUCT CONCERNED AND LIKE PRODUCT

2.1. Product under investigation, product concerned and like product

(17) In the absence of any comments, recitals (46) to (51) of the provisional Regulation were confirmed.

2.2. Claims regarding product scope

(18) Following pre-disclosure of the provisional findings, three exporting producers repeated the claim made by Linyi Chunming at provisional stage that phosphorous acid produced using another raw material than the input used by the Union producer, i.e. dimethyl phosphite, should be excluded from the product scope due to the different production processes, raw materials, chemical characteristics, cost, usage, and price. This claim was, however, already addressed in recital (54) of the provisional Regulation and rejected, as other production methods for phosphorous acid primarily use raw materials which already contain phosphorous acid and, even though these inputs undergo a transformation process, these raw materials should already be considered product under investigation. No new arguments were submitted and, therefore, the Commission rejected this claim.

(19) In the absence of any further comments, recitals (52) to (54) of the provisional Regulation were confirmed.

3. DUMPING

(20) Following provisional disclosure, the Commission did not receive any comments concerning the procedure for the determination of the normal value under Article 2(6a) of the basic Regulation, the normal value, export price, their comparison, and the resulting dumping margin. Therefore, the conclusions in recitals (55) to (171) of the provisional Regulation were confirmed.

4. INJURY

4.1. Definition of the Union industry and Union production

(21) In the absence of any comments, the Commission confirmed its conclusions set out in recitals (172) to (174) of the provisional Regulation.

4.2. Determination of the relevant Union market

(22) In the absence of any comments, the Commission confirmed its conclusions set out in recitals (175) to (178) of the provisional Regulation.

4.3. Union consumption

(23) In the absence of any comments, the Commission confirmed the conclusions set out in recitals (179) to (181) of the provisional Regulation.

4.4. Imports from the country concerned

(24) In the absence of any comments, the Commission confirmed the conclusions set out in recitals (182) to (192) of the provisional Regulation.

4.5. Economic situation of the Union industry

4.5.1. *General remarks*

(25) In the absence of any comments, the Commission confirmed recitals (193) to (197) of the provisional Regulation.

4.5.2. *Macroeconomic indicators*

4.5.2.1. Production, production capacity and capacity utilisation

(26) In the absence of any comments, the Commission confirmed recitals (198) to (199) of the provisional Regulation.

4.5.2.2. Sales quantity and market share

(27) In the absence of any comments, the Commission confirmed recitals (200) to (202) of the provisional Regulation.

4.5.2.3. Growth

(28) In the absence of any comments, the Commission confirmed recital (203) of the provisional Regulation.

4.5.2.4. Employment and productivity

(29) In the absence of any comments, the Commission confirmed recitals (204) to (206) of the provisional Regulation.

4.5.2.5. Magnitude of the dumping margin and recovery from past dumping

(30) In the absence of any comments, the Commission confirmed recitals (207) to (208) of the provisional Regulation.

4.5.3. *Microeconomic indicators*

4.5.3.1. Prices and factors affecting prices

(31) In the absence of any comments, the Commission confirmed recitals (209) to (211) of the provisional Regulation.

4.5.3.2. Labour costs

(32) In the absence of any comments, the Commission confirmed recitals (212) to (213) of the provisional Regulation.

4.5.3.3. Inventories

(33) In the absence of any comments, the Commission confirmed recitals (214) to (217) of the provisional Regulation.

4.5.3.4. Profitability, cash flow, investments, return on investments and ability to raise capital

(34) In the absence of any comments, the Commission confirmed recitals (218) to (224) of the provisional Regulation.

4.6. **Conclusion on injury**

(35) In light of the above, the Commission concluded, based on the findings set out in the provisional Regulation, that the Union industry suffered material injury within the meaning of Article 3(5) of the basic Regulation and confirmed, therefore, recitals (225) to (226) of the provisional Regulation.

5. CAUSATION

5.1. Effects of the dumped imports

(36) In the absence of any comments, the Commission confirmed recitals (228) to (230) of the provisional Regulation.

5.2. Effects of other factors

5.2.1. *Increase of costs of raw materials*

(37) In the absence of any comments, the Commission confirmed recitals (231) to (233) of the provisional Regulation.

5.2.2. *Imports from third countries*

(38) In the absence of any comments, the Commission confirmed recitals (234) to (235) of the provisional Regulation.

5.2.3. *Export performance of the Union industry*

(39) In the absence of any comments, the Commission confirmed recitals (236) to (237) of the provisional Regulation.

5.3. Conclusion on causation

(40) In the absence of any comments, the Commission confirmed recitals (238) to (242) of the provisional Regulation.

6. LEVEL OF MEASURES

6.1. Injury margin

(41) In the absence of any comments, the Commission confirmed recitals (244) to (250) of the provisional Regulation.

6.2. Examination of the margin adequate to remove the injury to the Union industry

(42) In the absence of any comments, the Commission confirmed recitals (251) to (266) of the provisional Regulation.

7. UNION INTEREST

7.1. Interest of the Union industry

(43) In the absence of any comments, the Commission confirmed recitals (268) to (271) of the provisional Regulation.

7.2. Interest of unrelated importers, users, consumers or suppliers

(44) After the imposition of provisional measures, one Spanish unrelated importer, Atanor Productos Químicos S.A., submitted comments and was granted a hearing. This importer, which declared that besides trading phsphorous acid it also used a small part of its imports for producing potassium phosphite before reselling, expressed concerns about the high level of the provisional duty and claimed that such high level of duty would disproportionately damage its trading and production activities, and even the broader Union agricultural sector.

(45) However, the Commission noted that Atanor had come forward as an interested party only after the imposition of provisional measures, and that it had thus not cooperated by completing a questionnaire. Furthermore, its statements were not substantiated by underlying evidence. During the hearing, the company explained that it employed [2–0] people and that the turnover linked to phosphorous acid would represent some [10 %-25 %] of its total turnover. The company also indicated that it imported phosphorous acid from China in the investigation period. The Commission considered the imported volumes, if compared to the total volume of imports from China in that period, small. In addition, after the initiation of the proceeding, the company had re-started to source phosphorous acid from the Union industry. The Commission considered that these presented figures, which, as mentioned above, were not accompanied by underlying evidence and, hence, not verifiable, did not point to disproportionate harm and therefore, absent of other comments from unrelated importers, users, consumers or suppliers, rejected the comments.

(46) The Commission therefore confirmed recital (272) to (280) of the provisional Regulation.

7.3. **Conclusion on Union interest**

(47) In the absence of any other comments on Union interest, the Commission confirmed that imposing measures is not against the interest of the Union as a whole and it confirmed recital (281) of the provisional Regulation.

8. **DEFINITIVE ANTI-DUMPING MEASURES**

8.1. **Definitive measures**

(48) In view of the conclusions reached with regard to dumping, injury, causation, level of measures and Union interest, and in accordance with Article 9(4) of the basic Regulation, definitive anti-dumping measures should be imposed in order to prevent further injury being caused to the Union industry by the dumped imports of the product concerned.

(49) The definitive anti-dumping duty rates, expressed on the CIF Union border price, customs duty unpaid, should be 122,8 %.

8.2. **Definitive collection of the provisional duties**

(50) In view of the dumping margins found and given the level of the injury caused to the Union industry, the amounts secured by way of provisional anti-dumping duties imposed by the provisional Regulation, should be definitively collected.

8.3. **Retroactive collection**

(51) As mentioned in Section 1.2 above, the Commission made imports of the product under investigation subject to registration.

(52) During the definitive stage of the investigation, the data collected in the context of the registration was assessed. The Commission analysed whether the criteria under Article 10(4) of the basic Regulation were met for the retroactive collection of definitive duties.

(53) For this analysis, the Commission first compared the monthly average import volumes of the product concerned during the investigation period with the monthly average import volumes during the period from the month following the investigation period until the last full month preceding the imposition of provisional measures. The Commission established that the volume of Chinese imports had decreased substantially in each of the months between initiation of the investigation and registration of imports as compared to the monthly average volume of imports in the investigation period. Between initiation and the imposition of provisional measures, the average volume of imports from China were slightly above 50 % of the average monthly import volume in the investigation period, whereas the average import prices increased by 16 %.

(54) On that basis, the Commission concluded that the conditions as set out in Article 10(4) of the basic Regulation for the retroactive application of the definitive anti-dumping duty were not met.

9. **FINAL PROVISION**

(55) In view of Article 109 of Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council ([6]), when an amount is to be reimbursed following a judgment of the Court of Justice of the European Union, the interest to be paid should be the rate applied by the European Central Bank to its principal refinancing operations, as published in the C series of the *Official Journal of the European Union* on the first calendar day of each month.

(56) The measures provided for in this regulation are in accordance with the opinion of the Committee established by Article 15(1) of Regulation (EU) 2016/1036,

HAS ADOPTED THIS REGULATION:

Article 1

1. A definitive anti-dumping duty is imposed on imports of phosphorous acid, in solid or liquid (aqueous) forms, also denominated phosphonic acid, usually falling under Chemical Abstracts Service ('CAS') numbers 13598-36-2 and 10294-56-1, with the Customs and Statistics ('CUS') numbers 0021895-1 and 0043878-8 usually corresponding to it, currently falling under CN code ex 2811 19 80 (TARIC code 2811 19 80 60), and originating in the People's Republic of China.

2. The rate of the definitive anti-dumping duty applicable to the net, free-at-Union-frontier price, before duty, of the product described in paragraph 1, shall be 122,8 %.

3. Unless otherwise specified, the provisions in force concerning customs duties shall apply.

Article 2

The amounts secured by way of the provisional anti-dumping duty under Implementing Regulation (EU) 2025/2314 imposing a provisional anti-dumping duty on imports of phosphorous acid originating in the People's Republic of China shall be definitively collected.

Article 3

This Regulation shall enter into force on the day following that of its publication in the *Official Journal of the European Union*.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 17 March 2026.

For the Commission
The President
Ursula VON DER LEYEN

([6]) Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (OJ L, 2024/2509, 26.9.2024, ELI: http://data.europa.eu/eli/reg/2024/2509/oj).